

I-3 TECHNOLOGY AND DATA INFRASTRUCTURE DISTRICT

Section 1-Statement of purpose.

The intent of this district is to identify areas within City of Americus for the development of technology infrastructure and digital data processing facilities that require significant land area, electrical capacity, cooling systems, and security measures. Public water and sewer shall be required for all Data Center, Minor; Data Center, Major; Data Center Campus; and Mobile Data Center uses.

The I-3 district is intended to accommodate large-scale technology uses in appropriate industrial areas and in a manner that minimizes adverse impacts on surrounding properties, public infrastructure, and natural resources. Such facilities often involve high energy consumption, water demand, specialized mechanical systems, large building footprints, and potential noise and infrastructure impacts.

The I-3 Technology and Data Infrastructure District is intended to be applied to properties designated “Industrial” on the Future Land Use Map and shall be consistent with the goals and policies of the City of Americus and Sumter County Comprehensive Plans.

These regulations are adopted to protect the public health, safety, and welfare of the citizens of Americus by establishing development standards for permitted uses and requiring conditional-use review for uses with greater potential impacts. Nothing in this section shall be construed to create an entitlement to approval of a data center or data center campus.

Section 2- Definitions.

Data center.

A facility primarily used for the housing of computer systems, servers, telecommunications equipment, data storage systems, and associated mechanical and electrical infrastructure necessary for the processing, storage, and transmission of digital information. Such facilities may include electrical substations, backup generators, cooling equipment, battery energy storage systems, and related support infrastructure.

Data centers are classified by the peak electrical demand of the total buildout shown on the site-development plan or master development plan:

Data Center, Minor: less than 50 MW

Data Center, Major: 50 MW or more, including the following tiers:

Data Center (Large): 50-99MW

Data Center (Hyperscale): 100-500MW

Data Center (Large Hyperscale): 500-1000MW

Data Center (Gigawatt Scale): 1000-2000MW

A data center campus shall be classified by the combined peak electrical demand of all buildings shown on the master development plan.

Data center campus.

A coordinated development consisting of two or more data-center buildings, whether constructed concurrently or in phases, located on the same parcel or on contiguous parcels under common ownership, control, or development. A data center campus shall be reviewed based on the total proposed buildout shown on the master development plan.

Closed-loop cooling system.

A cooling system that continuously recirculates cooling fluid within a closed piping system to minimize water consumption and prevent the routine discharge of process water, except for maintenance, system repair, water-quality management, or as otherwise authorized by applicable permits.

Emergency generator testing.

The scheduled operation of an emergency or standby generator for inspection, maintenance, performance verification, or regulatory compliance. The term does not include operation during a utility outage, emergency event, equipment failure, or other circumstance requiring emergency power.

Peak electrical demand.

The highest average electrical demand, expressed in megawatts (MW), recorded during any utility-established demand interval within a reporting period, as documented by the applicable electrical utility provider or other records acceptable to the Zoning Commission.

Peak daily water demand.

The greatest quantity of water used by a facility during any consecutive twenty-four-hour period within the applicable reporting period, as documented by the applicable water utility provider, facility meter records, or other records acceptable to the Zoning Commission.

Material operational change.

Any change or cumulative series of changes in the construction or operation of a data center or data center campus that materially increases or alters an impact evaluated through the approved site-development plan, approved master development plan, or conditional-use approval, as applicable. Such changes may include an increase or material alteration in gross floor area, electrical demand, generator capacity, fuel-storage capacity, cooling technology, water demand, wastewater discharge, noise generation, hours of operation, utility infrastructure, or other operational equipment or characteristics.

Non-evaporative cooling system.

A cooling system that rejects heat without routinely consuming water through evaporation, blowdown, or once-through discharge. The term may include air-cooled, closed-loop liquid-cooled, direct-to-chip, immersion, or other technologies when paired with non-evaporative heat rejection.

Open-loop cooling system.

A cooling system that draws water from a natural or public utility source, passes it through the heat-rejection equipment a single time or exposes it directly to the atmosphere for cooling, and then routinely discharges or loses the water through evaporation, bleed-off, or drain-down, rather than continuously recirculating the entire volume of process water within an isolated piping infrastructure.

Electromagnetic Fields (EMF).

Invisible areas of force made up of combined electric and magnetic fields. They occur naturally (like the Earth's magnetic field or lightning) or are created by human activities such as power lines, electrical wiring, and household appliances

Electromagnetic Interference (EMI): Unwanted electrical or magnetic noise from an outside source that disrupts or degrades the performance of an electronic or electrical device

Setback.

The minimum horizontal distance required between a specified property line, right-of-way line, zoning district boundary, or protected natural resource, and the nearest outermost point of any building, structure, mechanical equipment yard, substation, or secondary infrastructure development located on the same parcel.

Decommissioning.

The permanent cessation of a data center use and the removal, reuse, or lawful disposition of equipment, generators, substations, cooling systems, fuel-storage facilities, utility infrastructure, and other improvements associated exclusively with the discontinued use, followed by stabilization and restoration of the site in accordance with an approved Decommissioning and Site Restoration Plan.

Environmental Constraint Area.

An area identified through an environmental site assessment, wetland delineation, geotechnical investigation, historical records, regulatory records, or other reliable evidence as containing or potentially containing a Recognized Environmental Condition, brownfield condition, historic or existing borrow pit, wetland, stream, contaminated soil or groundwater, buried waste, fill of unknown origin, environmental covenant, institutional control, remediation area, or other condition requiring investigation, avoidance, remediation, buffering, or special construction controls.

Recognized Environmental Condition (REC).

A condition identified by a qualified environmental professional as a Recognized Environmental Condition under the then-current ASTM standard recognized by the U.S. Environmental Protection Agency for Phase I Environmental Site Assessments and All Appropriate Inquiries.

REC Area.

The portion of a property reasonably associated with a Recognized Environmental Condition, including the known or reasonably suspected extent of a release or threatened release and any area requiring additional investigation, remediation, engineering controls, institutional controls, or protective buffers.

Brownfield or Brownfield Area.

Real property, or a portion thereof, the expansion, redevelopment, or reuse of which may be complicated by the presence or potential presence of a hazardous substance, pollutant, or contaminant, including property subject to an environmental covenant, corrective action, remediation requirement, or other environmental restriction.

Borrow Pit.

An existing or former excavation from which soil, sand, clay, gravel, limestone, or other earthen material was removed for use as fill or construction material, including an excavation that was subsequently filled, partially filled, abandoned, or used for disposal or placement of material.

Wetland.

An area meeting the applicable federal or state definition of wetland, including areas inundated or saturated by surface water or groundwater at a frequency and duration sufficient to support, and that under normal circumstances do support, vegetation typically adapted for life in saturated soil conditions.

Section 3 - Permitted uses.

The following uses are permitted in the I-3 district subject to site-development plan approval and to all applicable development standards of this Article:

Data center, minor

Section 4- Conditional uses.

The following uses shall require approval as a conditional use in accordance with the procedures of this chapter:

Data center, major

Data center campuses

Mobile data center

Section 5- Area, height and placement requirements.

Minimum Lot Size

Minor data center 25 acres

Minimum Lot Size (Major data center, data center campus,

Hyperscale or larger) 50 acres

Lot Width at Setback 250'

Minimum Building Setback

Front 150'

Side 200'

Rear 200'

Maximum Building Height 60'

Maximum Lot Coverage: 75 percent

Section 6- Data center development standards.

Minimum lot size. Any lot proposed for development as a data center shall contain a minimum of 25 acres.

(1) Separation from residential zoning and residential uses.

No principal data-center building shall be located within one thousand (1,000) feet of a residentially zoned property or an existing residence located on property outside the data-center site. No data center shall abut a residential zoning district. The required separation distance shall be measured as the shortest straight-line horizontal distance from the nearest exterior wall of a principal data-center building to the nearest property line of the protected residentially zoned property, or to the nearest exterior wall of the protected residence, as applicable. This minimum separation is in addition to, and does not replace, the equipment setbacks, noise limits, buffers, environmental protections, utility-capacity requirements, water-use restrictions, emergency-response requirements, and conditional-use findings required by this Article.

(2) Separation from parks and public recreation areas.

No data center shall be located within 1,000 feet from any public park, trail, or recreation facility. The required separation distance shall be measured as the shortest straight-line horizontal distance between the nearest property lines of the proposed data center development and the protected property.

(3) Enhanced landscaping and screening.

In addition to the landscaping requirements of section 70-86 of this chapter, data center developments shall provide enhanced buffering and screening to reduce visual and noise impacts associated with large buildings, substations, generator yards, cooling equipment, and other mechanical infrastructure.

Where a data center abuts non-industrial zoning districts, the required buffer area shall include a combination of landscaping, berms, fencing, walls, or other approved screening methods designed to create a continuous visual screen. Any wall, fence, berm, landscaping, or combination of screening materials required under this section shall be designed to provide a minimum opacity of 95 percent where determined necessary by the Zoning Commission to mitigate visual or operational impacts.

Landscaping within the required buffer shall include evergreen trees, shrubs, or similar plantings arranged to create a year-round visual screen. At least fifty (50) percent of plant materials installed within the buffer shall consist of evergreen species. All plant materials must be non-invasive.

Where determined necessary by the Zoning Commission to mitigate visual or noise impacts, an earthen berm, solid wall, or fence not less than eight (8) feet in height may be required in addition to required landscaping.

Where buildings are visible from public roads, parks, or trails, the Zoning Commission may require additional landscaping, berms, or architectural screening to reduce the visual impact of large building facades.

The Zoning Commission may require increased buffer widths, additional plantings, or other screening measures to ensure compatibility with surrounding land uses.

Residential-facing buffer. Where any portion of a data-center site is located within two thousand (2,000) feet of a residentially zoned property or an existing residence, the portion of the site facing the residential use shall include a minimum one-hundred (100) foot landscaped buffer, measured inward from the data-center property line, containing existing mature vegetation where practicable and supplemented with evergreen plantings, berms, walls, or other acoustical and visual screening as necessary. Required environmental buffers may satisfy this requirement only to the extent they provide equal or greater width and protection.

(4) Equipment, placement and operational requirements.

Substations, electrical yards, mechanical yards, generator yards, cooling equipment, and any other exposed equipment associated with a data center shall not be located between the primary data center building and any public road or public right-of-way unless otherwise approved by the City of Americus as part of the conditional use approval. Such equipment shall be located behind the primary structure where feasible and shall be screened from view from all adjacent public streets, private streets, trails, and parks through landscaping, fencing, walls, or other approved screening methods. Utility equipment shall also comply with all required setbacks, buffering, and landscaping requirements established in this chapter.

Residential equipment setback. Notwithstanding the general building setbacks in Section 5, electrical substations, generator yards, bulk fuel-storage areas, exterior cooling equipment, cooling towers or heat-rejection equipment, and battery energy storage systems shall be located not less than two thousand (2,000) feet from the nearest exterior wall of an existing residence and not less than two thousand (2,000) feet from the nearest boundary of a residential zoning district. This requirement shall be measured from the nearest edge of the equipment, equipment yard, or associated enclosure.

All servers, computers, processors, networking equipment, and related data processing infrastructure associated with a data center shall be located within fully enclosed permanent buildings constructed in accordance with applicable building codes and zoning regulations.

No servers, computer equipment, or data processing infrastructure shall be located outdoors or within temporary, portable, or transportable structures.

This requirement shall not apply to standby power generation equipment, electrical substations, cooling equipment, or other utility infrastructure that is customarily located outdoors, provided such equipment complies with the screening and placement requirements of this chapter.

(5) Cooling and HVAC equipment screening.

Air conditioning units, air cooled chillers, HVAC systems, and similar mechanical equipment associated with a data center shall be screened from view from public rights-of-way and adjacent properties through architectural screening, parapet walls, fencing, roof elements, landscaping, or other approved screening methods.

Where such equipment is located on rooftops, screening shall be integrated into the architectural design of the building so that the equipment is not visible from ground level along adjacent public roads.

(6) Noise standards.

Data center operations shall not produce sound that exceeds an average of 55 A-weighted decibels (dBA) over any thirty (30) minute period between the hours of 8:00 a.m. and 6:00 p.m., measured at any property line of the data center site.

Between the hours of 6:00 p.m. and 8:00 a.m., data center operations shall not produce continuous sound that exceeds an average of 45 A-weighted decibels(dBA) over any thirty (30) minute period, measured at any property line.

The Zoning Commission shall require a noise study to verify compliance with this section both prior to issuance of a certificate of occupancy and after the facility becomes operational.

The data center subject property owner and/or applicant shall have a pre-construction sound study performed by a third-party licensed acoustic engineer to determine baseline ambient noise levels (as measured in dBA) along all exterior property lines of the proposed data center. The study shall provide data for the measured A-weighting, C-weighting and Z-weighting and narrow band frequency analysis/tonal analysis. The noise study shall include a noise contour map and shall be sealed and signed by the licensed acoustic engineer. Ambient noise/decibel levels shall be documented from all perimeter property lines of the subject property on which the data center is proposed. The pre-construction noise study shall be submitted as part of the TRC application.

Infrasound and Z-Weighted Sound. All pre-construction ambient noise studies and post-construction compliance testing shall include Z-weighted (dBZ) measurements and one-third octave-band frequency analysis sufficient to identify and quantify facility-generated infrasound and low-frequency sound from 10 Hz through 200 Hz, with the 10 Hz, 12.5 Hz, 16 Hz, and 20 Hz bands specifically reported. Baseline measurements shall be established at representative property-line locations and at nearby residences and other noise-sensitive receptors and shall be repeated after the facility becomes operational under representative high-load conditions. A persistent or recurring facility-generated increase of 10 dB or more above the established pre-development ambient level in any one-third-octave band between 10 Hz and 20 Hz shall constitute a significant infrasound component requiring reasonable mitigation, which may

include equipment isolation, vibration control, acoustic enclosures, silencers, increased setbacks, equipment relocation, or operational modifications. The detection of infrasound alone shall not constitute a violation; the measurable facility-generated increase above the established ambient level shall govern the determination. All measurements shall be conducted using Class 1 instrumentation capable of Z-weighted and one-third-octave-band analysis and in accordance with generally accepted professional acoustical standards.

If the facility is determined to exceed these limits, the operator shall take corrective measures necessary to bring the facility into compliance.

Measurements shall be taken using industry standard sound level meters and methodologies.

The required acoustical analysis shall evaluate the cumulative sound of all buildings, cooling systems, transformers, substations, generators, ventilation equipment, and other facility equipment at full reasonably foreseeable operating conditions. The analysis shall compare modeled operational sound with the pre-development ambient noise study required by Section 7(9), including nighttime ambient conditions at nearby residences and other noise-sensitive receptors. Where the analysis demonstrates a substantial increase above existing nighttime ambient sound or identifies tonal, impulsive, or low-frequency characteristics likely to increase community impact, the City of Americus may require additional equipment setbacks, enclosures, barriers, silencers, operational limitations, or other mitigation as conditions of approval. Nothing in this paragraph authorizes sound levels exceeding the property-line limits stated above.

(7) Generator testing.

Routine testing of backup generators shall be limited strictly to workdays only (Monday through Friday) between the hours of 8:00 a.m. to 6:00 p.m. Routine maintenance, readiness, or performance verification testing of backup generators on weekends (Saturdays and Sundays) or official government holidays is strictly prohibited.

Generators shall only be used in emergency situations. An unplanned interruption of utility service is an emergency. The absence, delay, or insufficiency of utility interconnection or contracted utility capacity is not an emergency and does not authorize generator operation. All emergency and standby generators, associated fuel-storage tanks, and related equipment shall be identified on the approved site plan. Plans shall state the number and rated capacity of generators; the location and capacity of each fuel-storage tank; aggregate on-site fuel-storage capacity; estimated operating duration at full generator load; and proposed fuel-delivery, containment, spill-control, fire-protection, and emergency-response measures.

To protect the public health, safety, and welfare of surrounding properties from the localized cumulative impacts of particulate matter, soot, and nitrogen oxides generated during operations, all stationary emergency or standby diesel generators installed at a Data Center, Major, or Data Center Campus shall be factory-certified to meet U.S. EPA Tier 4 Final emissions standards, or shall be equipped with verified add-on emission control systems (including, but not limited to, Selective Catalytic Reduction systems and diesel particulate filters) that reduce emissions to a

level fully equivalent to Tier 4 Final standards as verified by the state environmental permitting agency at the time of building permit review. The installation or operation of unmitigated Tier 2 or Tier 3 backup generators for new Major or Campus developments is strictly prohibited. Generator and fuel-storage installations shall comply with all applicable federal, state, and local environmental and fire-safety requirements and shall receive approval from the applicable fire-code official and other reviewing agencies before issuance of applicable development or building permits. Tanks shall incorporate required secondary containment, leak and overfill protection, impact protection, emergency shutoff systems, and stormwater safeguards.

For a use requiring conditional-use approval, the aggregate fuel-storage capacity and generator configuration shall be limited to those approved by the City of Americus. A material increase shall constitute a material operational change and shall be reviewed in accordance with this article.

Generator testing logs shall be maintained and made available to the Zoning Commission or their designee upon request.

(8) Cooling systems and water use.

Data centers shall utilize closed-loop, non-evaporative cooling systems designed to minimize water consumption. Potable water shall not be used for routine heat rejection through cooling towers, evaporative condensers, direct evaporative cooling, or similar water-consuming cooling technologies. Open-loop and once-through cooling systems are prohibited.

Water may be used for domestic purposes, fire protection, initial system filling, equipment maintenance, and temporary emergency cooling necessary to prevent an imminent threat to public safety or substantial equipment damage. Emergency cooling shall not constitute the facility's normal or primary cooling method.

A hybrid or evaporative cooling component shall not be permitted by right.

Each data center shall install separate metering capable of documenting total facility water use and water used specifically for cooling.

The facility must record daily meter readings and submit the monthly flow/water-meter records by the 10th day of the following month to the City of Americus water and wastewater utility. Where any cooling tower, evaporative condenser, direct evaporative cooling unit, or similar water-containing or aerosol-producing equipment is approved for emergency or temporary use under this subsection, the operator must maintain that equipment in accordance with a Maintenance Program and Plan (MPP). The MPP is to be prepared by a qualified person, and must identify responsible management personnel, define requirements for safe operation, risk assessments, equipment disinfection, water quality monitoring standards and frequency, corrective actions, worker protection procedures, and a plan for the prevention of Legionella and other water-associated pathogens. Records of maintenance procedures defined in the MPP must be submitted in the annual compliance report required by this article.

A change in cooling technology or an increase exceeding an approved water-use limit shall constitute a material operational change and shall be reviewed in accordance with this article.

As part of conditional-use approval, the City of Americus shall establish a maximum average daily and peak daily water-use limit for the approved development based upon the applicant's water-use plan, utility-capacity certification, drought and emergency supply considerations, and the total buildout shown on the approved master development plan. The approved limit shall be enforceable as a condition of approval. No limit shall be approved that, together with existing demand and reserve capacity for existing customers and planned community growth, would exceed the withdrawal authorized by the City's groundwater-withdrawal permit issued by the Georgia Environmental Protection Division.

(9) Public water and sanitary sewer.

All data centers and data center campuses shall be connected to and served by public water and public sanitary sewer. Public sanitary sewer service shall be used only for domestic and sanitary wastewater generated by the development. Private wells and onsite sewage-disposal systems shall not be used for domestic or sanitary sewage.

Cooling water, process wastewater, industrial wastewater, and other non-domestic wastewater generated by the facility shall not be discharged into the public sanitary sewer system. The owner or operator shall provide, operate, and maintain a separate onsite wastewater treatment or management system for all such wastewater. The onsite system shall be designed, permitted, operated, and maintained in accordance with all applicable federal, state, and local requirements.

Before final site-development approval, the applicant shall provide written confirmation from the applicable public water and wastewater utility providers that:

Public water and public sanitary sewer service are available to the development;
Adequate system capacity exists to serve the proposed development, including all anticipated buildings and phases shown on an approved master development plan;
The proposed average daily water demand, peak daily water demand, and anticipated domestic and sanitary wastewater discharge can be accommodated; and
Any necessary utility extensions, system improvements, connection requirements, and service conditions have been identified.

All costs associated with utility extensions, connections, capacity improvements, the required onsite wastewater treatment or management system, and other infrastructure necessary to serve the development shall be borne by the developer unless otherwise approved by the applicable utility provider and the City of Americus.

(10) Electrical utility verification.

The applicant shall provide written documentation from the electrical utility provider confirming that adequate transmission and distribution capacity exists to serve the proposed development and adequate capacity exists to serve the proposed development as approved.

For a Major Data Center or Data Center Campus, the utility verification shall address the total approved buildout and shall identify any transmission, substation, distribution, generation, water, sewer, or other system improvements reasonably necessary to serve the development without

reducing adopted levels of service or identified reserve capacity for existing customers and planned community growth. Approval shall not be based solely upon a representation that future capacity may become available.

(11) Lighting.

All exterior lighting fixtures shall be designed, located, and operated to prevent light pollution, minimize glare, and eliminate light spillover onto adjacent properties. Any such lighting installation shall strictly comply with the following development standards:

(1) Shielding and Cut-Off Angle. All exterior lighting shall be fully shielded, downward-directed, and feature a maximum eighty (80) degree cut-off angle to ensure no light is emitted above the horizontal plane of the fixture.

(2) Correlated Color Temperature (CCT). The correlated color temperature of all exterior light sources shall be three thousand (3,000) Kelvin (K) or less, producing a warm-white light emission. The installation of cool-white, blue-toned, or unmitigated high-intensity discharge light sources exceeding 3,000K is strictly prohibited.

(3) Smart Controls and Automation. All exterior lighting systems shall incorporate integrated smart control technologies, which must include:

Motion Sensors: Security and perimeter lighting shall utilize integrated motion sensors configured to dim or deactivate fixtures during periods of inactivity.

Automated Dimming: Parking lot, access road, and facility lighting systems shall be equipped with programmable astronomical clocks or automated dimming controls designed to reduce total illumination levels by a minimum of fifty percent (50%) between the hours of 10:00 p.m. and 6:00 a.m., or within one (1) hour after the conclusion of normal business operations, except where necessary to maintain critical public safety or security operations as verified by the Zoning Commission.

(12) Security fencing.

Security fencing and walls associated with a data center shall not be located within the required buffer. Where security fencing is installed along property lines adjacent to public roads, other zoning districts, parks, or trails, the fencing shall be screened from view through landscaping, berms, decorative fencing materials, or walls.

Chain link fencing with barbed wire, razor wire, or similar security features shall not be visible from public rights-of-way or residentially zoned properties.

(13) Battery energy storage systems.

Battery energy storage systems associated with data center backup power systems shall comply with all applicable federal, state, and local fire and building codes, including applicable National Fire Protection Association (NFPA) standards. Where battery storage systems are utilized, the applicant shall coordinate with the local fire department regarding emergency response procedures and access requirements. Battery storage areas shall be clearly identified on site development plans submitted for review. Battery energy storage systems shall comply with any applicable regulations adopted by City and State regulations governing battery energy storage systems.

(14) Off-street parking.

Off-street parking for data center facilities shall be provided in accordance with the parking requirements for industrial or manufacturing establishments contained in Sec. 70-605 of this chapter. The Zoning Commission may require additional parking where necessary to accommodate employees, visitors, security personnel, or maintenance operations associated with the facility.

(15) Conditions of approval.

The City of Americus may impose additional conditions as part of the conditional use approval to mitigate impacts on surrounding properties, infrastructure, or natural resources. No conditional use for a Data Center, Major, or Data Center Campus shall be approved unless the City Council makes written findings, based upon the application record and site-specific evidence, that the proposed location, design, and operating conditions: (1) comply with the residential separation and equipment setback requirements of this Article; (2) are capable of meeting the applicable daytime and nighttime property-line noise limits, considering the ambient-noise study and cumulative facility sound; (3) provide adequate residential, wetland, and environmental buffers; (4) avoid or appropriately investigate, remediate, control, and monitor REC Areas, brownfields, borrow pits, wetlands, and other Environmental Constraint Areas; (5) have documented utility capacity for the approved buildout; (6) comply with approved water-use limits and cooling restrictions; (7) provide adequate fire, hazardous-material, battery, fuel-storage, and emergency-response measures; and (8) will not create site-specific impacts on surrounding properties, public infrastructure, or natural resources that cannot be reasonably mitigated through enforceable conditions of approval.

(16) Road infrastructure impacts.

Where a proposed data center development will significantly increase heavy truck traffic or require improvements to public roadways, the City of Americus shall require the applicant to construct or fund roadway improvements, as necessary, to maintain safe traffic operations.

(17) Infrastructure responsibility.

Approval of a data center development shall not obligate the City of Americus or any public utility provider to construct, extend, or upgrade infrastructure or services necessary to support the proposed facility. Any improvements to roads, utilities, or other infrastructure required to serve the development shall be the responsibility of the applicant unless otherwise approved by the City of Americus. This responsibility shall include, but not be limited to, any additional public safety infrastructure, equipment, staffing, or facilities determined by the City of Americus to be reasonably necessary to serve or mitigate the impacts of the proposed development, including, but not limited to, fire stations, fire apparatus, emergency medical service (EMS) facilities and equipment, emergency personnel, emergency communications infrastructure, law enforcement facilities and equipment, or other public safety improvements necessary to maintain adopted levels of service.

(18) Building design standards.

Data center buildings shall be designed to reduce visual impacts associated with large building mass and to ensure compatibility with surrounding land uses.

Building facades visible from public roads or from residential, commercial, or other non-industrial zoning districts shall incorporate architectural variation through changes in materials, colors, wall planes, parapets, rooflines, or other similar design features in order to avoid the appearance of large, blank walls.

Exterior building materials on facades visible from public roads shall consist of durable, high-quality materials appropriate for industrial and commercial construction. Such materials may include brick, stone, split-face block, architectural precast concrete panels, high-quality fiber cement panels, architectural metal panels with non-reflective finish, or similar materials approved by the Zoning Commission.

No building facades visible from a public road or non-industrial zoning district shall consist of a single uninterrupted wall plane exceeding one hundred (100) linear feet without the use of architectural features such as projections, recesses, changes in materials, color variation, pilasters, reveals, or similar design elements intended to break up building mass.

Facades visible from public rights-of-way shall incorporate at least two of the following design elements:

Vertical or horizontal articulation of the facade;
Changes in wall plane;
Changes in exterior materials or color;
Parapet variation or stepped rooflines; or
Architectural projections or recesses.

The Zoning Commission may require additional architectural treatment, material variation, landscaping, or screening where necessary to reduce the visual impact of large building facades.

(19) Construction in Areas with Limestone and Karst Topography.

Due to the distinct geologic hazards, structural instability, and high potential for groundwater contamination associated with limestone and karst formations within the jurisdiction, any proposed development within the district shall strictly adhere to the following mandatory standards:

(a) Geologic Investigation and Site Plan. The applicant shall develop and submit a comprehensive karst geology site plan, prepared and signed by a licensed professional geologist registered in the State. This site plan must explicitly identify, delineate, and map all existing karst features, closed depressions, fractures, losing streams, and sinkholes located on or within five hundred (500) feet of the subject parcel boundaries.

(b) Establishment of Non-Buildable Areas. Based upon the findings of the approved karst geology site plan, the applicant shall delineate a permanent "Non-Buildable Karst Mitigation Area" on the master development plan and all subsequent site plans. The primary purpose of this area is to mitigate potential geologic hazards, prevent structural subsidence, and protect local groundwater resources from contamination resulting from stormwater runoff, chemical leaks, or facility spills.

(c) Boundary Determination. The exact boundaries of the Non-Buildable Karst Mitigation Area shall be determined by the licensed professional geologist through a rigorous analysis of the site's micro-topography, underlying bedrock geology, soil characteristics, and localized surface and subsurface stormwater flows. At a minimum, this area shall include a mandatory one hundred (100) foot buffer measured radially outward from the lip or structural rim of any identified sinkhole or karst depression, unless a greater distance is deemed necessary by the Zoning Commission.

(d) Prohibition of Structures. No primary buildings, accessory structures, mechanical equipment yards, electrical substations, fuel-storage tanks, battery energy storage systems, or wastewater management systems of any kind shall be permitted within the designated Non-Buildable Karst Mitigation Area.

Furthermore, no clearing, grading, excavation, or land disturbance shall occur within this area unless expressly authorized under an approved Karst Remediation and Stormwater Management Plan approved by the City Engineer or an engineer designated by the City of Americus.

Baseline Testing: Prior to any land disturbance or clearing, the applicant's licensed professional geologist shall install a minimum of three (3) monitoring wells (one upgradient and two down-gradient) and submit a baseline water quality analysis to the City Engineer or designated engineer and the Planning Director.

Ongoing Semi-Annual Testing: Once operational, the facility operator shall contract with an independent, state-certified laboratory to conduct water quality sampling from the monitoring wells semi-annually (every six months). The certified testing results shall be included in the Annual Compliance Report mandated under Section 9. If an unauthorized spike in target chemical contaminants or petroleum byproducts is detected, the facility shall be subject to the Public Nuisance Abatement penalties under Section 13.

(20) Environmental Constraint and Sensitive Lands Protection.

(a) Purpose. Because data centers and data center campuses involve substantial building footprints, grading, excavation, utility construction, fuel storage, electrical infrastructure, stormwater runoff, and other intensive land-disturbing activities, development shall be located and designed to avoid wetlands, Recognized Environmental Condition areas, brownfield areas, historic or existing borrow pits, and other environmentally sensitive or potentially contaminated areas.

(b) Environmental Site Assessment Required. Prior to approval of any conditional use, site-development plan, master development plan, land-disturbance permit, or building permit, the applicant shall submit a current (produced in the past 12 months) Phase I Environmental Site Assessment prepared by a qualified environmental professional in accordance with the then-current ASTM standard recognized by the U.S. Environmental Protection Agency for All Appropriate Inquiries. The assessment shall identify and map all Recognized Environmental Conditions, historical and controlled Recognized Environmental Conditions, known or

suspected contaminated areas, former industrial or waste-disposal areas, historic or existing borrow pits, wetlands, streams, drainage features, and other environmental conditions reasonably requiring additional investigation.

(c) Recognized Environmental Condition Areas. No building, foundation, electrical substation, generator yard, fuel-storage facility, battery energy storage system, cooling facility, wastewater-management facility, stormwater infiltration facility, or other permanent data-center infrastructure shall be constructed within an area associated with a Recognized Environmental Condition unless: (a) the condition has been adequately investigated through a Phase II Environmental Site Assessment or other investigation acceptable to the reviewing authority; (b) the nature and extent of any contamination have been delineated; (c) all remediation, risk-management, institutional-control, or engineering-control requirements imposed by the applicable federal or state environmental agency have been satisfied; and (d) an independent qualified environmental professional certifies that the proposed construction and land disturbance will not create an unreasonable risk of contaminant migration, human exposure, groundwater contamination, or off-site migration. The Zoning Commission or City of Americus may establish a larger non-buildable environmental buffer where necessary based upon site-specific environmental conditions.

(d) Brownfields and Known or Suspected Contaminated Property. No land-disturbing activity associated with a data center shall occur within a designated brownfield, known contaminated area, or property subject to an environmental covenant, institutional control, corrective-action requirement, remediation plan, or similar environmental restriction until the applicant demonstrates compliance with all applicable federal and state environmental requirements. No zoning, conditional-use, site-plan, or development approval issued under this Article shall be construed as authorizing disturbance of contaminated soil, groundwater, waste material, or other regulated material.

(e) Historic and Existing Borrow Pits. All historic or existing borrow pits, excavation areas, fill areas, disposal areas, and materially disturbed areas identified through historical aerial photography, environmental assessments, geotechnical investigation, or other reliable evidence shall be delineated on the master development plan. No principal data-center building, substation, generator yard, fuel-storage facility, battery energy storage system, wastewater facility, or other critical infrastructure shall be constructed within such an area until a geotechnical and environmental investigation establishes the suitability of the area for the proposed use. Where evidence indicates that a borrow pit or excavation area may have subsequently been used for disposal, filling, dumping, or placement of material of unknown origin, the area shall be treated as a potential environmental concern requiring investigation before any clearing, grading, excavation, pile driving, foundation construction, or utility installation occurs.

(f) Wetlands and Waters. All wetlands, streams, waters, and other aquatic resources located on or potentially affected by the development shall be professionally delineated and shown on the master development plan prior to approval. No data-center building, mechanical yard, generator yard, electrical substation, fuel-storage facility, battery energy storage system, wastewater-treatment or management facility, parking area, or other permanent development

shall be located within a delineated wetland or required wetland buffer. Except for unavoidable utility or transportation crossings specifically approved by all agencies having jurisdiction, wetlands shall not be filled, excavated, drained, impounded, used for stormwater detention, used for construction staging, or otherwise disturbed for purposes of developing a data center or data center campus. A minimum undisturbed vegetated buffer of one hundred (100) feet shall be maintained from the delineated boundary of every wetland. The City of Americus may require a greater buffer where necessary to protect groundwater, surface-water quality, downstream properties, sensitive habitat, or other natural resources.

(g) No Avoidance Through Parcel Configuration. Required environmental buffers and non-buildable areas shall apply regardless of subdivision, recombination, property-line adjustment, phased development, transfer of ownership, or other alteration of parcel boundaries.

(h) Construction Protection and Contaminated-Material Management. Where construction will occur adjacent to a REC Area, brownfield, borrow pit, wetland, or other identified Environmental Constraint Area, the applicant shall submit an Environmental Construction Management Plan addressing soil disturbance, dust and airborne particulate control, contaminated-soil handling, dewatering, groundwater protection, erosion and sediment control, stormwater migration, worker protection, material transportation, emergency response, and protection of adjoining and downstream properties.

(i) Independent Review. The jurisdiction may require independent review of any environmental assessment, wetland delineation, remediation plan, geotechnical report, or Environmental Construction Management Plan by a qualified consultant selected by the jurisdiction. All reasonable costs of such independent review shall be borne by the applicant.

(j) Continuing Obligation. Discovery during construction or operation of previously unidentified contamination, buried waste, petroleum products, stained soil, unusual odors, drums, tanks, fill material, groundwater contamination, or other evidence of a potential environmental hazard shall require immediate cessation of land-disturbing activity within the affected area and notification of the Zoning Commission and all other agencies required by law. Work within the affected area shall not resume until the condition has been investigated and any required corrective measures have been completed or approved.

(21) Blasting and Explosives Regulation.

No person or corporate entity shall conduct blasting, rock fracturing, or utilize explosive materials for site preparation, grading, or utility excavation within the district without first obtaining a valid Blasting Permit from the City Fire Marshal. Any permitted blasting operation shall strictly comply with the following mandatory standards:

(a) Application and Pre-Blast Survey. The permit application must include a detailed blast plan, a scaled map identifying all structures within a five thousand two hundred eighty (5,280) foot radius of the blast site, and a pre-blast structural inspection of all willing adjacent properties within that zone.

(b) Hours of Operation. Blasting activities shall be strictly limited to the hours of 9:00 a.m. to 4:00 p.m., Monday through Friday. No blasting shall occur on weekends, official government holidays, or during hours of darkness.

(c) Vibration and Air Overpressure Limits. All blasts shall be monitored by a certified independent seismologist present on-site. Peak particle velocity (PPV) and air overpressure levels shall not exceed the conservative thresholds established by the U.S. Bureau of Mines to prevent structural or cosmetic damage to surrounding properties.

(d) Community Notification. The operator shall provide written notice to all property owners and residents within five thousand two hundred eighty (5,280) feet of the parcel boundary at least ten (10) business days prior to the initiation of the first blasting event.

(e) Flyrock and Safety Controls. The use of standard blasting mats is mandatory to completely prevent flyrock from casting outside the immediate excavation zone. No flyrock shall be allowed to cross the property line of the subject parcel.

(f) Indemnity Bond Required. Before the issuance of a Blasting Permit, the applicant shall post and maintain a valid corporate indemnity bond or irrevocable letter of credit in an amount not less than five million dollars (\$5,000,000).

The bond shall name the City of Americus as the obligee, shall be issued by a surety licensed to do business in the State, and shall be conditioned to pay for any and all property damage, bodily injury, or public infrastructure repair resulting directly or indirectly from the blasting operations.

This financial assurance shall remain in full force and effect until the City Fire Marshal confirms in writing that all blasting operations are complete and all verified claims for property damage have been legally resolved.

(22) Airport Proximity and Flight-Path Safety.

To safeguard aviation operations and maintain compliance with Federal Aviation Administration (FAA) regulations and Georgia aviation safety standards, any data center development located within five (5) miles of a public-use or private-use airport facility shall comply with the following mandates:

FAA Form 7460-1 Notice: The applicant must submit documentation proving they have filed FAA Form 7460-1 (Notice of Proposed Construction or Alteration) for all building mass, transmission towers, and temporary construction cranes, and have received a formal "Determination of No Hazard to Air Navigation."

Thermal Plume and Glare Mitigation: Cooling systems and non-evaporative heat rejection infrastructure shall be designed to prevent the upward venting of high-velocity thermal plumes within active flight paths. Rooftop mechanical equipment screening and building exterior finishes shall feature non-reflective coatings to prevent hazardous glare to pilots.

Section 7- Application and Public Participation Requirements.

Applications for conditional use approval for a data center, data center campus, or mobile data center shall be filed with the Planning and Zoning Commission. To ensure robust public transparency, comprehensive community engagement, and strict adherence to procedural due process, no application for a conditional use under this Article shall be considered complete or scheduled for a public hearing until the applicant has fully complied with all of the following requirements:

(1) Required application materials.

- (a) Site development plan.
- (b) Noise impact assessment.
- (c) Water consumption and sustainability plan.
- (d) Energy consumption and electrical infrastructure plan.
- (e) Transmission line and electrical infrastructure impact assessment, including an Electromagnetic Field (EMF) study as detailed in Section 8.
- (f) Stormwater management plan.
- (g) Phase I Environmental Site Assessment prepared by a qualified environmental professional.
- (h) Phase II Environmental Site Assessment where recommended by the Phase I assessment or required by the Zoning Commission based upon documented environmental conditions.
- (i) Wetland and waters delineation identifying all wetlands, streams, drainage features, required buffers, and proposed crossings or disturbances.
- (j) Environmental Constraints Map identifying all Recognized Environmental Condition areas, known or suspected brownfields or contaminated areas, historic and existing borrow pits, wetlands, streams, environmental covenants, remediation areas, and other environmentally constrained portions of the property.
- (k) Environmental Construction Management Plan where clearing, grading, excavation, foundation construction, utility installation, or other land disturbance is proposed within or adjacent to an identified Environmental Constraint Area.
- (l) Lighting plan.
- (m) Landscaping and buffer plan.
- (n) Tree preservation or reforestation plan, if applicable.
- (o) Comprehensive karst geology site plan (as required under Section 6(19)).

(2) Mandatory Pre-Application Community Town Hall Meeting.

Prior to the formal submission of an application to the Planning and Zoning Commission, the applicant shall host, facilitate, and fully fund a minimum of one (1) public community town hall meeting to present the proposed development layout, infrastructure specifications, and environmental impact assessments to local residents.

- (a) Location: The town hall meeting shall be held at a publicly accessible indoor venue located within a two (2) mile radius of the subject parcel boundaries, or at the nearest available public facility if no venue exists within that radius, subject to the approval of the Zoning Commission.
- (b) Scheduling: The meeting shall be scheduled on a weekday evening (Monday through Thursday) beginning no earlier than 6:30 p.m., or on a Saturday between the hours of 10:00 a.m. and 3:00 p.m., to maximize resident availability. The meeting shall not be held on official

government holidays.

(c) Notice of Town Hall: The applicant shall provide written notice of the community town hall meeting at least fifteen (15) business days prior to the event date. Notice shall be delivered via first-class mail to all property owners, tenants, and residents within a five (5) mile radius of the subject parcel boundaries. The applicant shall also post a conspicuous, weather-resistant notification sign on the subject property along every public road right-of-way frontage at least fifteen (15) days prior to the meeting.

(d) Conduct of Meeting and Documentation: The applicant shall provide a clear overview of the project, including total square footage, maximum continuous megawatt draw, backup generator emissions tiers, and cooling water configurations. A question-and-answer period must be provided. The applicant shall retain an independent court reporter or certified digital recording service to document the entire proceeding. A complete transcript, a copy of the presentation materials, and a verified physical sign-in sheet of all attendees shall be submitted as a mandatory component of the official application package.

(3) Expanded Public Hearing Notification Radius.

When a conditional use application under this Article is deemed complete and is formally scheduled for a public hearing before the Planning and Zoning Commission and the City Council of the City of Americus, the required notification boundary shall be significantly expanded to mitigate the regional geographic impacts associated with large-scale technology infrastructure.

(a) Mailed Notice: The jurisdiction shall mail a formal notice of the public hearings to all property owners, registered tenants, and residents located within ten (10) mile of the nearest property line of the proposed development site. This mailed notice shall be dispatched at least thirty (30) calendar days prior to the date of the first public hearing, with all direct mailing and administrative costs borne entirely by the applicant.

(b) Expanded Posting Standards: In addition to standard legal newspaper advertisements, the applicant shall install reflective, high-visibility zoning notification signs measuring no less than four (4) feet by four (4) feet at maximum five hundred (500) foot intervals along the entire public perimeter of the subject parcel. These signs must clearly list the maximum proposed megawatt capacity, building footprints, and the scheduled dates, times, and locations of all public hearings.

(c) Supermajority Voting Requirement for Major Facilities.

Due to the extraordinary demands placed upon public grid infrastructure, emergency response capabilities, and natural resources by large-scale technology installations, the approval of a Conditional Use Permit for a Data Center, Major, or a Data Center Campus shall require a supermajority vote of four-fifths (4/5) of the full voting membership of the City Council to pass. A simple majority vote shall be legally insufficient to approve a Major or Campus conditional use application under this Article.

(4) Application Completeness.

Applications for data center conditional use approval shall not be considered complete and shall not be scheduled for public hearing until all required plans, studies, and documentation identified in this section, including the certified town hall transcripts, have been submitted and reviewed by staff. Such application shall be considered in the same manner and following the same procedures as are applicable to applications for approval of zoning and rezoning applications under O.C.G.A. § 36-66-1 et seq., and upon such consideration, the Planning and Zoning

Commission shall make a recommendation to the City Council as to whether the conditional use application should be approved, denied, or approved with conditions, based upon the provisions of this ordinance.

(5) Emergency operations plan.

The applicant shall provide an emergency operations and safety plan describing procedures for fire protection, hazardous materials management, fuel storage, battery storage systems, and coordination with local emergency response agencies.

(6) Construction traffic management plan.

The applicant shall provide a construction traffic management plan identifying proposed haul routes, construction access points, staging areas, anticipated truck traffic volumes, hours of construction traffic activity, and measures to minimize impacts on public roads, adjacent properties, emergency access, and general traffic safety. The Zoning Commission, as part of the conditional use approval, may require revisions to the plan and may require coordination with applicable city and county departments, utility providers, school transportation officials, or emergency response agencies where necessary.

(7) Applicant responsibility for costs.

All costs associated with required studies, reports, plans, engineering analyses, and technical reviews required under this section shall be the responsibility of the applicant. Where the City of Americus determines that independent technical review by a qualified consultant is necessary to evaluate the application, the applicant may be required to reimburse the City for the reasonable cost of such review.

(8) Electrical demand disclosure. The applicant shall provide documentation identifying the anticipated maximum electrical demand for the facility and any planned phases of expansion. Any increase in electrical demand beyond that approved as part of the conditional use approval shall require additional review and approval by the City of Americus.

(9) Ambient noise study.

The applicant shall provide a pre-development ambient noise study prepared by a qualified acoustical consultant. The study shall document existing background sound levels at locations determined appropriately by the City of Americus, including property lines adjacent to residential or other noise-sensitive land uses where applicable. The City may require post-construction noise testing to verify compliance with Section 6(6). All costs associated with such studies and any independent technical review shall be the responsibility of the applicant.

(10) Electromagnetic Interference Assessment

The applicant shall submit an Electromagnetic Interference Assessment addressing the potential for facility equipment to interfere with nearby electronic, communications, medical, navigation, public-safety, or other sensitive systems.

The assessment shall evaluate potential interference with:

- (a) Emergency communications;
- (b) Police, fire, and emergency medical communications;
- (c) Radio systems;

- (d) Television and broadcast systems;
- (e) Cellular communications;
- (f) Public-safety communications;
- (g) Medical equipment;
- (h) Residential electronic equipment;
- (i) Wireless communications;
- (j) Aviation or navigation systems where applicable; and
- (k) Other sensitive systems identified by the City of Americus.

(11) Emergency responder coordination.

In addition to the emergency operations plan required by subsection (5), the applicant shall coordinate with local fire, emergency management, law enforcement, and other public safety agencies regarding site access, emergency response procedures, hazardous materials, fuel storage, battery storage systems, and other operational features of the proposed facility that may affect emergency response. The City of Americus may require periodic coordination, updated emergency response procedures, or specialized training as a condition of approval.

Before issuance of a certificate of occupancy, the applicant shall provide documentation of a completed pre-incident coordination meeting with the local fire department and emergency management agency addressing emergency access, shutoff locations, battery hazards, generator and fuel hazards, hazardous materials, water supply for fire suppression, mutual-aid needs, and facility contact procedures. Any specialized equipment, training, access improvements, or response measures imposed as a condition of approval shall be completed or funded before operation begins.

(12) Utility service feasibility.

The applicant shall provide any additional written documentation from applicable utility providers, beyond the requirements of Sec. 70-566(9) and Sec. 70-566(10), that the Zoning Commission or City of Americus determines is necessary to confirm the feasibility of serving the proposed development. Such documentation may include confirmation of electrical service, water service, wastewater service, or other utility infrastructure necessary to support the proposed facility.

The Zoning Commission or their designee may request additional studies, plans, or documentation if necessary to evaluate potential impacts related to utilities, noise, infrastructure, environmental conditions, or surrounding land uses.

The City of Americus shall establish by ordinance the application fees payable by the applicant at the time of filing of the application. Such application fees shall not be refundable to applicant once the staff review of the application has commenced.

Section 8- Data center campus developments.

A data center campus consisting of two (2) or more data center buildings, whether constructed concurrently or in phases, shall require submission and approval of a master development plan as part of the conditional-use application.

The master development plan shall identify the anticipated location of each building, substation, infrastructure, access point, and buffers.

Each phase of development shall remain consistent with the approved master plan unless otherwise amended through the conditional use approval process.

(1) Phasing and expansion. Any expansion of a previously approved data center or data center campus that increases the total building area, electrical demand, water consumption, or infrastructure footprint beyond what was approved in the original conditional use approval shall require review and approval through a new conditional use application.

For purposes of this section, expansion shall include additional buildings, server capacity increases requiring additional utility infrastructure, expansion of substations or generator yards, or development of additional phases not shown on the originally approved master development plan.

Section 9- Ongoing Compliance and annual reporting.

(1) Continuing compliance. Each data center and data center campus shall continuously comply with the requirements of this article, the approved site-development plan, the approved master development plan, if applicable, and any applicable conditions of conditional-use approval.

(2) Annual compliance report. On or before January 31 of each year, the owner or operator shall submit an annual compliance report to the Zoning Commission covering the preceding calendar year. The report shall be signed by an authorized representative of the owner or operator and shall certify compliance with the requirements identified in subsection

(3) Required information.

The annual compliance report shall include:

- (a) The facility's average daily, peak daily, monthly, and annual water consumption;
- (b) Total water used specifically for cooling, including the source of the cooling water and the amount obtained from potable and nonpotable sources;
- (c) Records of routine generator testing, including the date, time, duration, and number of generators operated during each testing event, demonstrating compliance with the generator-testing hours established by this article and any additional limitations imposed through conditional-use approval, if applicable;
- (d) A summary of any noise measurements, noise complaints, investigations, corrective actions, or violations occurring during the reporting period;
- (e) A description of any emergency generator operation, emergency cooling, utility interruption, equipment failure, fire, hazardous-material release, fuel spill, or other material operational incident occurring during the reporting period;
- (f) A description of any change in cooling technology, electrical demand, generator capacity, fuel-storage capacity, building area, operational equipment, or other facility component that could constitute a material operational change;
- (g) Copies of any notices of violation, enforcement actions, consent orders, or similar findings issued by a federal, state, or local regulatory agency relating to the facility during the reporting period, together with a description of any corrective action taken;

- (h) A summary of environmental monitoring, remediation activities, institutional or engineering controls, environmental covenants, wetland-buffer compliance, and any newly discovered environmental condition or release occurring during the reporting period;
- (i) Any additional documentation reasonably necessary for the Zoning Commission to verify compliance with this article, the approved site-development plan, the approved master development plan, if applicable, and any applicable conditions of conditional-use approval.

(4) Records.

The owner or operator shall maintain the records supporting each annual compliance report for a minimum of five (5) years and shall make such records available to the City of Americus for inspection upon reasonable request.

(5) City review and inspection.

The City of Americus may review the annual compliance report, inspect the facility at reasonable times in accordance with applicable law, and require additional information reasonably necessary to determine compliance. Submission of an annual compliance report shall not limit the City's authority to investigate a complaint or conduct an inspection at another time.

(6) Failure to comply.

Failure to timely submit a complete annual compliance report, submission of materially false or misleading information, refusal to provide required supporting records, or failure to comply with this article, an approved site-development plan, an approved master development plan, or applicable conditions of conditional-use approval shall constitute a violation of this article and shall be subject to the enforcement provisions of this chapter.

(7) Material operational changes.

Submission of an annual compliance report shall not constitute approval of a material operational change. Any proposed material operational change shall be reviewed and approved in accordance with this article before the change is implemented.

Section 10- Material operational changes.

(1) Before implementing a proposed change, the owner or operator shall submit sufficient information to the Zoning Commission to determine whether the proposal constitutes a material operational change.

(2) The Zoning Commission shall determine whether the proposed change is consistent with the requirements of this article and the approved site-development plan, approved master development plan, and conditions of conditional-use approval, as applicable.

(3) A material operational change to a minor data center permitted by right may be approved through a revised site-development plan, provided the facility remains within the definition and applicable limitations of a minor data center and the change complies with all requirements of this article.

(4) A change that causes a minor data center to exceed the applicable limitations for a permitted use shall require conditional-use approval before the change is implemented.

(5) A material operational change to a use approved through the conditional-use process shall require approval of an amendment to the conditional use before the change is implemented.

(6) A change to a data center campus that is inconsistent with or exceeds the approved master development plan shall require approval of an amended master development plan and, when applicable, an amendment to the conditional-use approval.

(7) Routine maintenance, repair, or replacement of equipment with substantially equivalent equipment that does not materially increase or alter an operational impact shall not constitute a material operational change.

Section 11- Tax Abatements and Regulatory Compliance

(1) Condition of Compliance. The granting, continuation, or renewal of any municipal tax abatement or economic incentive granted or supported by the City of Americus is strictly conditioned upon the data center's absolute compliance with all standards in this ordinance, including but not limited to the noise limits, water-use limits, generator standards, environmental protections, and conditions of approval established under this ordinance.

(2) Link to Decommissioning. No tax abatement shall be finalized or distributed by the Finance Department until the operator has fully executed and funded the Decommissioning Plan and financial security requirements established in Section 12 of this ordinance.

(3) Revocation and Clawback. A violation of any regulatory standard herein that remains uncured for more than thirty (30) days shall result in the immediate suspension of all tax abatements. If a facility is abandoned or triggers the decommissioning clauses of this ordinance, the City reserves the right to capture and "claw back" any abated taxes from the previous three (3) fiscal years.

Section 12- Decommissioning and abandonment.

(1) Applicability. Every data center and data center campus shall comply with this section. These requirements apply to permitted uses and conditional uses and shall remain binding upon the property owner, facility owner, operator, and their successors and assigns.

(2) Decommissioning plan.

Before final site-development approval for a permitted use, or as part of the conditional-use application for a conditional use, the applicant shall submit a decommissioning plan for review and approval by City of Americus. The plan shall include:

(a) The anticipated useful life of the facility;

(b) The circumstances constituting abandonment or permanent cessation of operations;

(c) The method by which the owner or operator will notify City of Americus of the cessation of operations;

(d) An inventory of the buildings, equipment, utility infrastructure, electrical facilities, generators, fuel-storage systems, cooling systems, and other improvements to be removed;

(e) The procedures for disconnecting utilities and safely removing, transporting, recycling, or disposing of equipment, structures, fuel, chemicals, batteries, electronic waste, and other materials;

(f) The procedures for identifying and remediating soil, groundwater, or other environmental contamination;

(g) The procedures for stabilizing and restoring the site, including grading, erosion control, stormwater management, revegetation, and removal of impervious surfaces, unless the City of Americus approves the continued use of a structure or improvement;

(h) The anticipated schedule for completing decommissioning and site restoration; and a detailed estimate of the cost of completing all required decommissioning and site-restoration activities.

(3) Abandonment or cessation of operations.

A facility, or an approved phase of a facility, shall be presumed abandoned when it has ceased its principal operations for a continuous period of one hundred eighty (180) days.

A temporary interruption caused by construction, remodeling, repair, equipment replacement, casualty, utility interruption, or another circumstance beyond the reasonable control of the owner or operator shall not constitute abandonment when the owner or operator:

- (a) Provides the Zoning Commission with written notice describing the reason for the interruption and the anticipated date operations will resume;
- (b) Continues to maintain the property in compliance with this article and all other applicable requirements; and
- (c) Demonstrates reasonable and continuing progress toward resuming lawful operations.

The owner or operator shall provide written notice to the Zoning Commission within thirty (30) days after permanently ceasing operations.

(4) Determination of abandonment.

The Zoning Commission may determine that a facility or phase has been abandoned based upon the duration of the cessation of operations, utility records, the removal or disconnection of essential operating equipment, statements by the owner or operator, the condition of the property, failure to maintain required permits or approvals, or other reliable evidence.

Before making a final determination of abandonment, the Zoning Commission shall provide written notice to the property owner and the facility owner or operator, if different, stating the basis for the proposed determination. The property owner and facility owner or operator shall have thirty (30) days from the date of the notice to submit information demonstrating that the facility has not been abandoned.

(5) Decommissioning required. Following permanent cessation of operations or a final determination of abandonment, the owner or operator shall begin decommissioning within ninety (90) days and shall complete decommissioning and site restoration within one hundred eighty (180) days. The City of Americus may approve a different completion schedule based upon the size of the facility, the scope of the required work, environmental conditions, or other circumstances affecting completion.

Decommissioning shall be performed in accordance with the approved decommissioning plan and shall include:

- (a) Disconnection of the facility from electrical, water, sewer, telecommunications, and other utility systems, except for utilities approved by City of Americus to remain in service;
- (b) Removal of data-processing equipment, generators, batteries, fuel tanks, cooling equipment, substations, accessory equipment, and other facility components required to be removed under the approved plan;
- (c) Removal of buildings, foundations, paved areas, utility improvements, and other structures unless City of Americus approves their continued use for another lawful purpose;
- (d) Lawful recycling, reuse, transportation, or disposal of equipment, fuel, chemicals, batteries, electronic waste, construction debris, and other materials;

(e) Investigation and remediation of any soil, groundwater, or other environmental contamination in accordance with applicable federal, state, and local requirements; and
(f) Stabilization and restoration of the site, including grading, erosion control, stormwater management, establishment of permanent vegetative cover, and any other measures necessary to leave the property in a safe and stable condition.

(6) Financial assurance required.

Before final site-development approval for a permitted use, or before issuance of any land-disturbance, building, or development permit for a conditional use, the owner or operator shall provide and maintain financial assurance sufficient to secure the complete decommissioning of the facility and restoration of the site in accordance with the approved decommissioning plan.

No construction shall begin until the decommissioning cost estimate has been approved and the required financial assurance has been reviewed and accepted by the City of Americus.

(7) Required amount of financial assurance.

The owner or operator shall provide financial assurance in an amount equal to one hundred twenty-five (125) percent of the total decommissioning and site-restoration cost estimate approved by the City of Americus.

(8) Form of financial assurance.

The required financial assurance shall be provided in a form acceptable to the City of Americus and City Attorney. Acceptable forms may include an irrevocable letter of credit, surety bond, cash escrow, or another form approved by the City of Americus.

The financial-assurance instrument shall name the City of Americus as beneficiary, obligee, or other authorized recipient, as applicable, and shall permit the City of Americus to draw upon or collect the secured funds if the owner or operator fails to perform decommissioning or site restoration as required.

(9) Continuing validity.

The owner or operator shall maintain the full required amount of financial assurance continuously until the City of Americus confirms in writing that decommissioning and site restoration have been satisfactorily completed.

The financial-assurance instrument shall not expire, terminate, or be cancelled without at least one hundred twenty (120) days' prior written notice to the City of Americus.

The owner or operator shall provide replacement financial assurance acceptable to the City of Americus no later than sixty (60) days before the effective date of any expiration, cancellation, or termination. Failure to provide timely replacement financial assurance shall constitute a violation of this article and shall constitute grounds for the City of Americus to draw upon or collect the existing financial assurance to the extent authorized by the applicable instrument and law.

(10) Periodic review and adjustment.

At least once every three (3) years, and upon any material operational change that may increase decommissioning costs, the owner or operator shall submit an updated decommissioning plan and cost estimate to the Zoning Commission.

The updated financial assurance shall continue to equal one hundred twenty-five (125) percent of the updated decommissioning and site-restoration cost estimate approved by the City of Americus.

The City of Americus may require the financial assurance to be increased or otherwise adjusted to reflect facility expansions, changes in equipment or operations, inflation, or current labor, equipment, transportation, disposal, remediation, and site-restoration costs. The owner or operator shall provide any required increase or replacement financial assurance within sixty (60) days after receiving written notice from the City of Americus.

(11) Transfer of ownership or control.

A transfer of ownership, operation, or control of the property or facility shall not release the existing owner or operator from the requirements of this section until the successor has:

- (a) Assumed the decommissioning obligations in writing;
- (b) Provided replacement financial assurance in the full amount required by this section; and
- (c) Received written confirmation from the City of Americus approving the substitution.

The existing financial assurance shall remain in effect until City of Americus has accepted the replacement financial assurance.

(12) Failure to decommission.

If the owner or operator fails to begin or complete decommissioning and site restoration within the required time, the City of Americus may, after providing any notice required by law:

- (a) Draw upon or collect the financial assurance;
- (b) Enter the property to the extent authorized by law;
- (c) Complete or contract for the completion of the required work; and
- (d) Recover from the property owner, facility owner, or operator any costs exceeding the amount of the financial assurance.

Use of the financial assurance shall not limit the City of Americus's authority to enforce this article, recover its costs, impose applicable penalties, or pursue any other remedy authorized by law.

(13) Partial decommissioning.

When an independently functioning building, phase, or portion of a data center campus permanently ceases operations or is abandoned, City of Americus may require decommissioning of that portion without requiring decommissioning of portions that remain lawfully operational.

The owner or operator shall demonstrate that the remaining facility can continue to operate safely and in compliance with the approved site-development plan, approved master development plan, conditional-use approval, and this article, as applicable.

(14) Release of financial assurance.

The City of Americus shall release the financial assurance only after the Zoning Commission, in consultation with other applicable City officials, confirms in writing that:

- (a) Decommissioning and site restoration have been completed in accordance with the approved decommissioning plan and all applicable requirements;
- (b) All required environmental assessment and remediation have been completed;
- (c) The property has been left in a safe and stable condition; and
- (d) All outstanding costs owed to the City of Americus in connection with the decommissioning have been paid.

Section 13- Violation of Article and Public Nuisance Abatement

(1) Declaration of Public Nuisance. Any data center facility operated, maintained, or constructed in violation of any provision of this Ordinance—including but not limited to the sound limits, water restrictions, generator standards, or any electromagnetic interference mitigation imposed as a condition of approval—is hereby declared to be a Public Nuisance per se.

(2) Revocation of Permit and Operating Authority. Upon a finding by the Code Enforcement Administrator that a violation has continued uncured for a period of fifteen (15) business days following written notice to the operator, the Conditional Use Permit and Certificate of Occupancy for the facility shall be automatically suspended. Continued operation of the data center during such suspension shall constitute a separate, strict-liability municipal offense for each day of operation.

(3) Summary Abatement. If the operator fails to abate the public nuisance within the designated timeframe, the City reserves the right to enter the property and summarily abate the nuisance. Pursuant to O.C.G.A. § 41-2-9, the full cost of such abatement—including any mechanical, technical, or legal expenses incurred by the City—shall be transmitted to the municipal tax collector or city revenue officer. This amount shall constitute a lien against the real property possessing the same dignity and priority as a lien for municipal ad valorem taxes, and shall be collected using all methods available under Georgia law for the collection of delinquent property taxes.

(4) Incentive Forfeiture. A final determination of a violation under this Section shall result in the immediate and permanent revocation of all tax abatements described in Section 11 of this Ordinance. The City shall be entitled to recover and "claw back" any and all taxes abated during the three (3) fiscal years preceding the date of the violation notice.

Section 14- Severability.

Should any sentence, section, subsection or provision of this Ordinance or application of a provision of this Ordinance be declared invalid or unconstitutional by any Court or other competent jurisdiction, such declaration shall not affect the validity of the Ordinance as a whole or any part thereof that is not specifically declared to be invalid or unconstitutional.